

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS  
STATE OF COLORADO

Case No. 2016-3765

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**STIPULATION AND FINAL AGENCY ORDER**

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IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO  
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF  
MICHAEL HERNANDEZ, LPC NO. 5198,

Respondent.

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IT IS HEREBY STIPULATED by and between the State Board of Professional  
Counselor Examiners ("Board") and Michael Hernandez ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case No. 2016-3765. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
  - a. On or around December 9, 2015, Respondent entered into a Stipulation and Final Agency Order with the Board in Case No. 2014-4332 ("2015 Order"), pursuant to which Respondent's license was placed on probation for three (3) years with practice monitoring and continuing education.
  - b. On or around September 2016, Respondent practiced professional counseling without an approved practice monitor in place, as required in the 2015 Order.
  - c. Respondent failed to update his Healthcare Professions Profile regarding demographic information, location of practice, and current employer.

5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated §§12-43-222(1)(b) and (g) and 24-34-110(9)(c), C.R.S.

### **RELINQUISHMENT**

6. Respondent hereby relinquishes his license and the right to practice as a professional counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept said relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of §12-43-224(3)(a)(II), C.R.S.

7. Following relinquishment of his license, Respondent shall not perform any act requiring a license to practice.

8. Respondent understands that if he applies for licensure at any future time, Respondent will be required to comply with all criteria for initial licensure that exist at the time of application.

9. Respondent also agrees not to register as a psychotherapist in the State of Colorado or perform any act constituting psychotherapy as defined under §12-43-201(9), C.R.S.

### **TERMS AND CONDITIONS**

10. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

11. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

12. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

13. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

14. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

15. Respondent shall obey all state and federal laws while this Order is in effect.

16. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

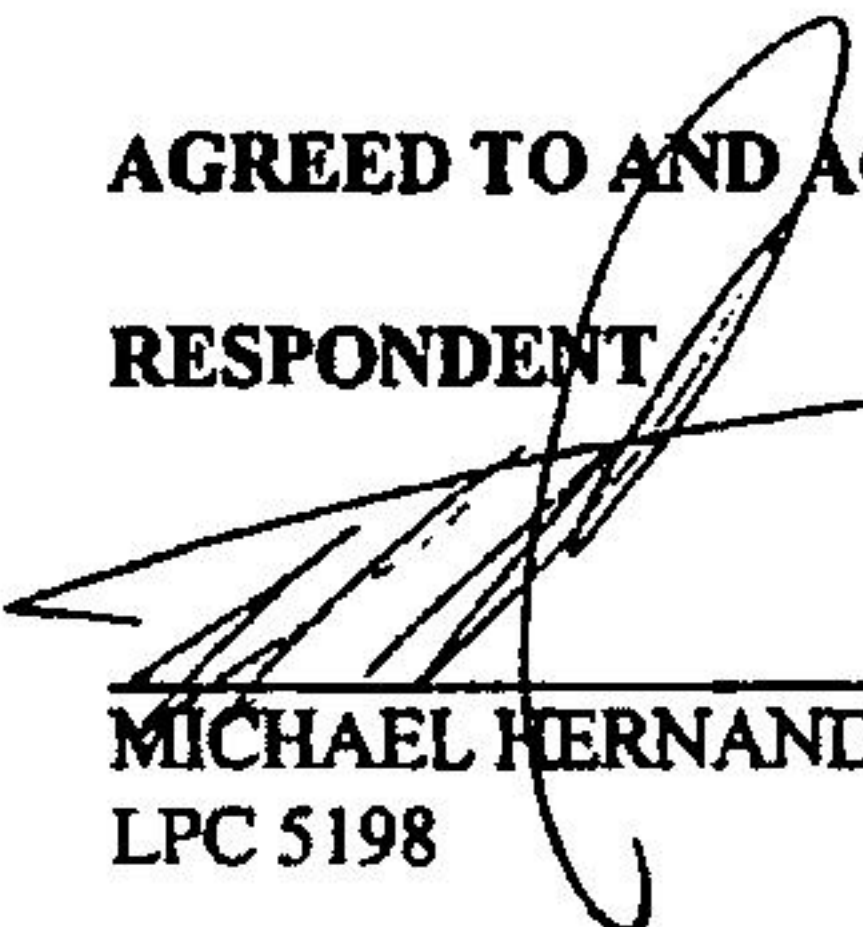
17. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

18. This Order shall be admissible as evidence at any hearing held before the Board.

19. This Order shall be a public record in the custody of the Board.

**AGREED TO AND ACCEPTED BY:**

**RESPONDENT**

  
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MICHAEL HERNANDEZ  
LPC 5198

**AGREED TO AND ORDERED BY:**

**BOARD OF LICENSED PROFESSIONAL  
COUNSELOR EXAMINERS**

  
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DARCIE MAGNUSON  
Program Director

Effective this 17<sup>th</sup> day of  
April, 2017.